



INDIAN LAW & DEALMAKING · 5 AUGUST 2026

Five moves shaping the board now.

- › NCLAT closes Monte Carlo CIRP after full settlement
- › SC rules kitting is not manufacture for excise
- › SEBI attaches Rajvardhan Foundation assets in recovery
- › NCLT Jaipur approves 288 crore ACCIL plan
- › ED PMLA prosecutions hit four year high in FY26

SWIPE →



NCLAT closes Monte Carlo CIRP after settlement

On 3 August 2026 NCLAT New Delhi set aside NCLT Ahmedabad's 6 July 2026 order admitting Vanshita Transport's Section 9 petition against Monte Carlo Limited and closed the CIRP after full settlement. The promoter deposited and then retrieved a 1.50 crore demand draft as the operational claim was repaid.

THE READ

Pre admission settlement can still unwind a CIRP if the appellate tribunal finds consent and no prejudice to other creditors. For operational creditors this reaffirms that full payment before substantial resolution steps can terminate proceedings and preserve the corporate debtor.



SC holds kitting imported modules is not manufacture

On 5 August 2026 the Supreme Court dismissed Revenue appeals and quashed a 17.86 crore excise demand against M/s Xerox India Ltd in Commissioner of Central Excise v. M/s Xerox India Ltd. The Court held grouping and unpacking imported photocopier modules per customer specs does not amount to manufacture under the Central Excise Act.

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This narrows the excise exposure of warehouse configuration and kitting models that do not create a new commercially distinct product. Importers and distributors should revisit past show cause notices and assess refund or mitigation opportunities where processes were mere grouping or plugging.



SEBI attaches Rajvardhan Foundation assets in recovery

On 5 August 2026 SEBI issued a Notice of Attachment against Rajvardhan Foundation under Recovery Certificate No. 8960 of 2025 to recover an unpaid penalty in an illiquid stock options case on BSE. The attachment is a recovery step following an earlier adjudication order that remains outstanding.

THE READ

SEBI is moving swiftly from adjudication to asset attachment where penalties remain unpaid in legacy illiquid options matters. Entities facing recovery certificates should prioritise settlement or payment before attachments constrain liquidity and trigger secondary compliance risks.



INSOLVENCY · NCLT

04 / 05

NCLT Jaipur approves 288 crore ACCIL plan

On 21 July 2026 NCLT Jaipur approved a 288.37 crore resolution plan for ACCIL Corporation Pvt Ltd submitted by Oriental Structural Engineers Pvt Ltd with 100 percent CoC approval. Secured financial creditors will receive 288 crore against admitted claims of 793.45 crore with priority payouts of 31.35 lakh to workmen and employees.

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Unanimous CoC backing and clear priority treatment for employee dues eased judicial scrutiny and accelerated approval. Resolution applicants should structure plans with explicit employee priority and funding from own resources to improve certainty of NCLT sanction.



ENFORCEMENT · ED

05 / 05

ED PMLA prosecutions rise to four year high in FY26

On 4 August 2026 Parliament was informed that the Enforcement Directorate filed 1080 PMLA prosecution complaints in FY 2025–26 a four year high with 1243 arrests and 2444 cases pending trial as of 30 June 2026. The data was tabled by MoS Finance Pankaj Chaudhary in a written reply.

THE READ

The surge in PMLA filings signals a denser trial pipeline and longer enforcement tails for corporate and promoter exposures. Counsel should budget for multi year litigation and consider early settlement or asset tracing strategies where PMLA overlays civil or regulatory actions.



THE THROUGH-LINE

These five moves share a common thread of enforcement clarity and settlement leverage across insolvency and regulatory fronts. Where full payment or unanimous creditor support exists tribunals are closing proceedings or approving plans quickly while regulators are tightening recovery and prosecution pipelines. The strategic lesson is to front load settlement and structural compliance before matters harden into protracted enforcement or trial tracks.





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